

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DONELL CARTER,

Plaintiff,

-against-

CITY OF NEW YORK; LOUIS GUGLIELMO;
SANDOR BURGOS; and JOHN AND JANE
DOE 1-10,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

The nature of this action is, *inter alia*, assault and battery, false arrest, malicious prosecution, fabrication of evidence and personal injuries sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

Dated: October 16, 2023
 New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



BY: Gabriel P. Harvis, Esq.

Attorneys for plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Failure to respond will result in a judgment against you by default and interest from July 19, 2022.

Defendants:

CITY OF NEW YORK

100 Church Street

New York, New York

Sergeant LOUIS GUGLIELMO

Shield No. 489

1035 Longwood Ave.

Bronx, NY, 10459-5204

Police Officer SANDOR BURGOS

Shield No. 9388

1035 Longwood Ave.

Bronx, NY, 10459-5204

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-against-

CITY OF NEW YORK; LOUIS
GUGLIELMO;; SANDOR BURGOS; and
JOHN AND JANE DOE 1-10,

Defendants.

VERIFIED COMPLAINT

Index No.:

Plaintiff Donell Carter, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK, as and for this Verified Complaint, respectfully alleges, upon information and belief:

JURISDICTION AND VENUE

1. One or more of the exceptions of § 1602 of the Civil Practice Law and Rules apply to this action.
2. This action is brought pursuant to the laws of the City and State of New York and the U.S. Constitution.
3. Jurisdiction is conferred by the laws of the State of New York.
4. Within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. The nature of the claims;
- b. The time when, place where, and manner in which the claim arose;
and
- c. The items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claims.

6. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiff on January 24, 2023.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

JURY DEMAND

8. Plaintiff demands a trial by jury in this action.

PARTIES

9. Plaintiff Donell Carter is a resident of the State of New York.

10. Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice,

supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

11. At all times relevant the individual defendants were Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. The individual defendants are sued in their individual capacities and as employees of defendant City.

12. At all times relevant defendants John and Jane Doe 1 through 10 were Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities and as employees of defendant City.

13. At all times relevant herein, all individual defendants were acting under color of state law and in the scope of their employment.

STATEMENT OF FACTS

14. On July 19, 2022 at approximately 10:30 p.m. plaintiff was lawfully present in the vicinity of the intersection of Hunts Point Avenue and Oak Point Avenue in the Bronx, New York.

15. Plaintiff was driving from a memorial for a deceased friend when he was boxed in and violently pulled from his vehicle, thrown to the ground and assaulted by NYPD officers.

16. During the assault, plaintiff was thrown to the ground face first, causing plaintiff to bleed and sustain injuries including, *inter alia*, injuries to his neck, back and shoulders, as well as a broken toe.

17. Despite the absence of reasonable suspicion or arguable probable cause and plaintiff's obvious need for medical treatment, defendants handcuffed plaintiff and took him to a police precinct.

18. At the precinct, officers prepared false paperwork and issued plaintiff summonses falsely accusing him of disorderly conduct and driving on the sidewalk.

19. Upon information and belief, both summonses were later dismissed.

20. Following plaintiff's release from the precinct, he sought treatment for the physical injuries he sustained when defendants assaulted him; plaintiff's medical treatment is ongoing.

21. By reason of the foregoing, plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered, *inter alia*, loss of liberty, pain and suffering, fear,

pain, permanent bodily injury, emotional distress, lost wages, mental anguish, and anxiety.

FIRST CLAIM
Unlawful Stop and Search

22. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

23. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

24. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM
Assault and Battery

25. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

26. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

27. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

28. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

THIRD CLAIM
Excessive Force

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. By their conduct, as described herein, the defendants are liable to plaintiff for having used unreasonable force against him in violation of the Fourth Amendment.

31. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM
False Arrest

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. By their conduct, as described herein, the defendants are liable to plaintiff for having arrested plaintiff in the absence of probable cause and in violation of the Fourth Amendment.

34. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM
False Imprisonment

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. By their conduct, as described herein, the defendants are liable to plaintiff for having arrested plaintiff in the absence of probable cause in violation of New York State law.

37. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SIXTH CLAIM
Malicious Prosecution

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

39. By their conduct, as described herein, the defendants are liable to plaintiff for having maliciously prosecuted plaintiff.

40. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SEVENTH CLAIM
Fabrication of Evidence

41. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

42. By their conduct, as described herein, the defendants are liable to plaintiff for having fabricated false evidence against plaintiff and forwarding it to prosecutors, in violation of the Fifth, Sixth and Fourteenth Amendments.

43. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

EIGHTH CLAIM
Malicious Abuse of Process

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. The individual defendants issued legal process to place plaintiff under arrest.

46. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their assault of him.

47. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.

48. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM

Negligence; Negligent Hiring/Training/Retention

49. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

50. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

51. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

52. The individual defendants' conduct, including the manner of pursuit and apprehension of plaintiff, was negligent, grossly negligent, reckless and intentional.

53. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

54. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants and the individual defendants' own negligence proximately caused each of plaintiff's injuries.

55. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

56. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

57. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

58. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

59. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

60. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM

Violation of Plaintiff's Administrative Code § 8-802 Rights

61. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

62. The actions of defendants violated plaintiff's rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

63. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and is entitled to the relief described in Section 8-805.

64. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM

Failure to Intervene

65. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

66. Those individual defendants who were present had a reasonable opportunity to intervene and an affirmative obligation to do so but failed to act, rendering them liable to plaintiff.

67. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CLAIM
Punitive Damages & Attorney's Fees

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

70. Accordingly, plaintiff is entitled to punitive damages.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs, and with interest from the date of the incident;
- (d) All relief afforded under Section 8-805 of Chapter 8 of the New York City Administrative Code; and

(e) Such other and further relief as this Court deems just and proper.

Dated: October 16, 2023
 New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK

A handwritten signature in black ink, appearing to be 'G. Harvis', written over a horizontal dashed line.

BY: Gabriel P. Harvis, Esq.
Attorneys for plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and an attorney of the law firm of ELEFTERAKIS, ELEFTERAKIS, & PANEK attorneys of record for the claimant herein, affirms:

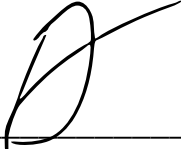
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affirmant's sources of information are investigation and files maintained in your affirmant's law office.

That this verification is made by your affirmant due to the fact that claimant does not presently reside within the county in which your affirmant maintains his law office or is presently outside the county in which your affirmant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: October 16, 2023
New York, New York



Gabriel P. Harvis, Esq.